EVEN HAEZER: HILCHOT GITTIN - DAYANUT SHIURIM

How Witnesses Sign a Get

Even HaEzer, Gittin 130:9-18

Sefer: Shulchan Aruch, Even HaEzer, Hilchot Gittin **Siman:** 130, Seifim 9-18 **Shiur:** A Dayanut shiur by Dayan Daniel Kada, Wednesday 9 March 2022

These notes are based on an automatic transcript of the recording.

Where We Are

One of the students had just finished two solid days of Beth Din sittings, with four gittin in one go. Where he serves, the Beth Din only convenes a few times a year, so the sofer writes several gittin in a day.

The aim was to finish Siman 130, the siman of the *chatima* (the signing of the edim), to keep pace with the other shiur. The previous shiur covered Seifim 1-8: Seif 1 on the general concept of *chatima* and why we have it, and Seifim 2-8 on peculiar cases of signatures. Seifim 9 and 10 go together, and deal with **divorcing several women with one document**.

Part 1: One Get for Five Women (Seifim 9-10)

The Mishna and the machloket

The Mishna says that if one writes one get for five women: if it is a ***klal*** (a unified document), they are all divorced; if it is a ***tofes*** (a series of separate texts), **only the last one** is divorced. What do *klal* and *tofes* mean?

	Opinion	What makes it a *klal*
Rabbi Yochanan	It depends on the ***zman*** (the date). One date written once unites the signatures into one, so they refer to all five, together with "*u-ploni*" joining each one	
Resh Lakish	Even one date is not enough. Only if they write "we, so-and-so and so-and-so, have divorced our wives" at the beginning, and then specify at the end who is divorcing whom (X for Y, A for B), otherwise the get is lacking ***ve-chatav lah*** (written specifically for her)	

The concern behind this, as earlier in the siman (the case of a greeting written beneath the get), is always: **what are the signatures going on?** If there is one date, everything is united and the signatures cover all five. If there are five dates, the signatures only cover the last one. This is even where all five dates are the same day; with different dates it would anyway be pasul because of *mukdam* (pre-dating).

The halacha is like Rabbi Yochanan against Resh Lakish, and so the Shulchan Aruch rules: **one date suffices** to make it one get.

"Tofes" in a new sense

"Don't get confused." Until now in the siman, *tofes* was contrasted with *toref*: the *toref* is the essential part (names, date), and the *tofes* the standard text. Here *tofes* means something else: **does each woman need her own separate body of text?**

- **The Rambam**, in his plain reading, holds that one body of text suffices. If they are all divorcing in the same place on one date, apart from the names everything can be shared.
- **The Tur** holds that **five *tofsim*** are needed: one date to unite them, but for each woman the names, the places and the essential text of the get. The words ***harei at muteret le-chol adam*** (you are permitted to any man) are part of the toref, so they must be written for each.
- **The Shulchan Aruch** quotes the Rambam's language, but in the Beit Yosef he explains the Rambam like the Tur. The **Beit Shmuel** rules that this is the Shulchan Aruch's intention: five individual texts for five women.

Edei mesira, and who may remarry

Although according to the Rambam the *edei chatima* suffice, **bediavad everyone agrees edei mesira are needed too**. This one document must be given in front of edei mesira to each of the five women.

What if the edei mesira are not before us, and the women want to remarry?

	Who is divorced
Tur	Each woman in turn: the first brings the document to the Beth Din, it is approved, and it is passed on to the next
Rambam, Shulchan Aruch, Beit Shmuel, Taz	Only the one who holds the document: ***ha-megilla yotzet mitachat yadah***. It cannot be passed on, since we know it was in her possession

Does Rabbi Yochanan accept Resh Lakish's method?

If one did it Resh Lakish's way ("we, so-and-so and so-and-so, have divorced..."), does that work for Rabbi Yochanan too?

- Most hold, of course, that Rabbi Yochanan agrees, as long as at the end it is specified who is divorcing whom.
- **The Rashba** disagrees: for Rabbi Yochanan, writing it that way is **too much unification**, so it lacks *ve-chatav lah*.
- **The Shulchan Aruch** follows the **Rambam, Rif and Ran**: it is kasher. Resh Lakish argues with Rabbi Yochanan, but Rabbi Yochanan agrees to Resh Lakish's method.

Different dates

Where there are different dates, or even, says the Beit Shmuel, where the words "*u-ve-yom ploni*" (and on such a day) are written for each, the signatures go only on the last one, and only the last is certainly divorced. But the others, if they come to the Beth Din holding the get, are ***safek megureshet***. They are not simply invalid; it is just that, *bepashtut*, the signatures go on the last one.

The Shulchan Aruch inside

- ***Bichlal*** means unified with one date, and with the *tofes* written for each: like Rabbi Yochanan, and like the Tur.
- It must be given with edei mesira. Without edei mesira before us, only the one holding the document is divorced, like the Rambam and not like the Tur.
- If each has its own date, then with edei mesira all are fine. Without them, if the one holding the get is the last, she is divorced; if it is one of the first ones, it is a doubt.
- Writing "*uve-yom ploni*" for each also breaks the unity.
- If they wrote it in the plural (Resh Lakish's way), it is kasher: the Shulchan Aruch rules like the Rishonim against the Rashba.

Summary of Seifim 9-10

Case	Edei mesira present	Without edei mesira
One date, *u-ploni*, each with its text	All five divorced	The woman holding the get is certainly divorced; the other four are *safek*
Five dates	Only the last certainly divorced	If the last holds the get, she is certainly divorced; if another holds it, all are *safek*

Written in the plural (Resh Lakish's way) **without** specifying at the end who divorces whom, the get is not merely a doubt: it is batel.

Part 2: *Peirush Shemotehem*: Writing Out the Names (Seif 11)

The Mishna: originally the edim signed, and **Rabban Shimon ben Gamliel instituted that they should write out their names** (*mefarshin shemotehem*).

- **According to Rabbi Meir** (*edei chatima karti*, the signatures effect the divorce), signatures are anyway needed *min haTorah*, so the takana means: don't just sign a mark, as one signs for a bank. Write the names out properly, "black and white."
- **According to Rabbi Elazar** (*edei mesira karti*, the delivery effects it), signatures are not really needed. The Gemara says the takana was that they should sign at all, in case the edei mesira die.

We rule like Rabbi Elazar. So does the takana of writing out the names apply?

- **The Rashba** holds that according to Rabbi Elazar, **a signature alone suffices**, with no need to write out the names.
- **The Rambam** rules like Rabbi Elazar and still requires *peirush shemotehem*. *Bepashtut*: once the takana was explained as writing out the names for Rabbi Meir, the same applies for Rabbi Elazar, even if it is not essential.
- **The Shulchan Aruch** follows the Rambam.

What does *peirush shemotehem* mean?

Opinion	Meaning
Rashi, Rashba	Writing your name, as opposed to a scribbled signature
Tur	Even before the takana they wrote their first name. *Peirush shemotehem* means **your name and your father's name**

The Shulchan Aruch rules like the Tur, which is why edim sign their name and their father's name. "Despite the fact the whole concept of *chatima* is in itself an addition you don't need... we take on the most."

The Beit Shmuel makes an important point. In Siman 133 we will learn that if there are only edei mesira and the get has not yet been given, it should not be given. But if there **were** signatures, only without fulfilling the takana of *peirush shemotehem*, the get may be given once it has been written. "So you see how this whole concept of *peirush shemotehem* is a kind of chumra."

"Yosef ben Yaakov, ed"

The Mishna, and the Shulchan Aruch, rule that any of these suffices: - your name and your father's name without the word *ed*; - your name with the word *ed*; - your father's name with the word *ed*.

But just "**Yosef**", without *ed*, is not enough. **The Rivash** explains: a name alone does not show that it is testimony. Signing with your father's name shows that you are signing as a witness, so you do not need *ed*. With one name, you need the word *ed*.

Why pasul, if it is only a chumra? (Seif 12)

The Shulchan Aruch says that "Yosef" alone is **pasul**, because the names were not written out. The Rabbi asked the class: if the whole thing is a chumra, why should it invalidate the get?

The answer: **all of this is without edei mesira**. If edei mesira come before us, it is all fine; nothing here is intrinsically flawed (*mezuyaf mitocho*). This is speaking where we rely on the signatures alone, either because there were no edei mesira or because they are not before us.

A key principle for all of Siman 130 and 133: when a get has proper signatures, we have a ***chazaka*** that it was given before kasher edei mesira, and we do not need to ask. When the signatures are questionable, the edei mesira must be brought before us.

So "pasul" here means we cannot rely on this get unless edei mesira come. Even holding that edei mesira are everything, the signatures matter, because they give us the *chazaka* of the edei mesira. It is the same as last week, where after all the cases of pasul signatures the Shulchan Aruch said: if there are edei mesira, it is kasher.

Part 3: The Rema on Signing

A mistake in the father's name

The Rema: since "Yosef *ed*" suffices, if the witness **erred in his father's name**, it is kasher, though only *bish'at hadechak*.

What is an "error"? **The Beit Shmuel**: a slip in writing. But if your father is Yaakov and you wrote "ben Yitzchak", "that cannot be." That is not a mistake; it is a different person. The Rabbi agreed with the **Pitchei Teshuva** and the **Beit Meir**: this will not suffice, because it gives the impression of a different person.

Other details

- **No *de-mitkarei* or kinuim** for edim, even lechatchila. Just the main name.
- **No honorifics**: not *Rav* or *Chacham*, just "*Ploni ben Ploni, ed*", as in the get itself.
- **Anyone with a question about his name should not sign**, for example a witness whose father is a meshumad, or any case where there is doubt how to write his name. "Stay out of it."

Eliyahu and Eliya

The **Darkei Moshe** says that someone named **Eliyahu** should not sign, because it is unclear whether it is written with or without the final *vav*. The Rabbi: "I don't think we do this." Taken literally, a person named Eliyahu could never sign, and the same would be true of a Matisyahu for Ashkenazim. A student said that in five or six years they had never had an issue with it.

The Rabbi mentioned that in Israel there are **professional edim**: with ten gittin a day, every day, being a witness is their nine-to-five job. In London they pay a witness something like £25. "So if someone wants to apply for the job and his name was Eliyahu, would they turn him down?"

A signature in Rashi script

The Rabbi read with the class a Pitchei Teshuva he especially likes. It brings a case where the **signatures were in Rashi script** rather than *ktav Ashurit*, and the question of whether they could be read. The **Panim Me'irot** discusses a name where a child read the *reish* as a *dalet* and the *tzadi* as a *yud-nun*, misreading "Peretz." The principle: even if an ordinary child misreads it, **if a clever child can read it correctly, it is fine**. The Ashkenazi children could not read it, but a clever Sephardi child could, and they relied on that. "I found this fascinating": how, in the middle of Europe two hundred years ago, they managed to find a clever Sephardi child.

A student noted that Rashi script has other problems for a get, for example its final *mem* resembles a *samech*. The Rabbi agreed, while pointing out that the case they read concerned the signatures, a different question from the text of the get.

An aside on reading Hebrew correctly

The Rabbi shared a recent frustration from a parents' evening: in conversation one may say "Dovid" or "Yosef," but when reading Torah or Tehillim one must read correctly, with the stress in the right place. Children reading from a Tehillim with no *trop* and no *meteg* have no way of knowing where the stress falls, as in *mizmor le-Asaf*. Why do Ashkenazim struggle with this? European languages are mostly *mil'el* (stressed on the penultimate syllable), while Sephardim, coming from Arabic, naturally stress *mil'ra*: "Asaf," "Yosef," "David" come out right without effort.

Part 4: Signing in Front of Each Other (Seif 13)

The edim of the get sign only in **עדי הגט אין חותמין אלא זה בפני זה, ואם חתמו שלא זה בפני זה פסול** each other's presence; if they did not, it is pasul.

The source is the Gemara in Gittin. The reason is a *gezeira*: if a husband told **ten people** to sign, and one did not, the get is batel, because he insisted that all ten sign (as learned in Siman 120). If all ten must sign together, they will not give the get when only nine have signed. If two were allowed to sign separately, they might give the get after two signed without the other eight. So there is a comprehensive *gezeira* that **even two edim must always sign in each other's presence**.

The **Darkei Moshe** spells out that we do **not** say that since they signed together, verifying one signature (*kiyum*) automatically verifies the other. Both signatures must be verified.

A third witness added afterwards

The husband instructed two people to sign; they signed in each other's presence. Then he asked a third person to sign as well, after the other two had gone. Is it kasher?

Opinion	Ruling
Rashi	Pasul: all three did not sign in each other's presence
Rabbeinu Tam	Kasher: once two have signed, as the husband originally instructed, the get is finished

The Ran explains the root of the machloket beautifully, and it will come up in the laws of *shlichut*: **can a husband nullify a get once it is complete?** For Rashi, the husband's wish for a third signature nullifies the existing get, so all three must sign together. For Rabbeinu Tam, once it has been signed it can no longer be nullified, so his wish for a third signature does not matter.

The Shulchan Aruch does not mention this, though the Beit Yosef brings the machloket. The plain silence of the Shulchan Aruch, not distinguishing, suggests pasul, like Rashi. The Rema's wording is not great: it could imply all three were there from the start, which is obviously pasul. The **Beit Shmuel** takes the trouble to explain that it means the first two signed and then the third was asked to sign.

Part 5: Languages (Seifim 14-16)

Can a get be in two languages?

Although not in the Shulchan Aruch, this is a good introduction.

- **The Rambam** says a get written half in Hebrew and half in another language is **pasul**, apparently based on a Tosefta.
- **The Ra'avad** says it is **kasher**. The Tosefta that invalidates it speaks where each witness signs in a language matching a different part. If the get is in two languages and the edim sign in one language, the signatures unify the get.
- **The Shulchan Aruch** rules like the Rambam: pasul.

Signatures in different languages

The Mishna clearly says that edim may sign in different languages: **one in Hebrew and one in another language** (Seif 16) is kasher. What is the difference? The Beit Yosef explains that **each signature is an entity in itself**, while a get is one get. So one signature in one language and the other in another is absolutely fine.

Likewise a get **written in one language and signed in another** (Hebrew and Greek, or the reverse) is kasher, as the Mishna says, and so rules the Shulchan Aruch:

גט שנכתב בכתב מאיזה לשון ועדים חתומים בכתב אחר, כשר

Must the witnesses understand it?

The **Yerushalmi** says this is only where, when the get is read before the edim, **they understand what is being read**. "Which makes sense. You can't sign on something which you don't at least understand."

But the Rambam and the Shulchan Aruch write: ***ve-hu she-yihyu ha-edim makirim leshon ha-ktav ve-ha-ktiva***, that the edim recognise both the language and the script. If it stopped at "the language," it would parallel the Yerushalmi exactly. The Rabbi gave his own example: "I can't read Arabic. I understand Arabic fluently." If a get were written in Arabic and read out to him, he would understand and could sign.

So what does "*ve-ha-ktiva*" add? Must one be able to read the alphabet? The **Beit Shmuel** goes back and forth, and concludes, which is rare, that knowing the script is required only when the witness **reads it himself**. If it is read to him, it suffices that he understands what is read.

Practical advice for small communities

In a smaller community, where the same pool of witnesses is not always available, a regular congregant who cannot write Hebrew could sign "**Daniel, son of Chaim, witness**" in English. That would be better than what the Rabbi once saw at a wedding: the Rabbi holding his pen over the hand of a witness who could not write properly, guiding him. "What's the point of that? That means he's signing. It's not your signature anymore." This will be discussed later.

Part 6: One Invalid Witness (Seif 17)

גט שחתמו בו עדים פסולים, אפילו אחד פסול ואחד כשר, הרי זה פסול, אף על פי שיש עדי מסירה, שהרי הוא מזויף מתוכו

"A very important *klal*." Although we rule like Rabbi Elazar that edei mesira effect the divorce, a get signed by an invalid witness, even one invalid and one valid, is **pasul even with edei mesira**, because it is ***mezuyaf mitocho***, forged from within. The flaw is in the document itself.

What kind of invalidity is this?

- **The Geonim** (quoted by the Rambam) hold the get is ***batel***.
- **The Rambam** holds it is **pasul *derabbanan***. Why should a rabbinic flaw negate edei mesira, which work *min haTorah*?

The Rabbi recalled an explanation of the Geonim he had heard in a shiur: with **only edei mesira**, the get is a ***shtar kinyan***, a document of acquisition; the edei mesira effect the divorce. Once one adds signatures, it becomes a ***shtar ra'aya***, a document of evidence, and a document of evidence that is *mezuyaf mitocho* is invalid. "Even though you could have got away without anything, now that you put signatures in, you made it worse."

The Shulchan Aruch writes ***harei zeh pasul***, like the Rambam.

Part 7: The Sofer as a Witness (Seif 18)

One should be careful that the sofer does not sign as **יש ליזהר שלא לחתום הסופר לעד, מפני שיש פוסלים** a witness, since some invalidate it.

This is a chumra, and to understand it we must go back to the great machloket in Siman 120 about ***omer imru*** (whether a husband can tell people to tell others to write and sign).

- **If *omer imru* is invalid**, the husband always speaks to the sofer and edim directly, and there is no reason a sofer cannot sign.
- **If *omer imru* is valid**, then a sofer signing is a problem. The husband tells two agents to tell the sofer to write and the edim to sign. The agents may feel it is a little degrading for the sofer only to write, as if the husband does not trust him, so they tell the sofer to write *and* sign and ask only one other witness. They have deviated from the husband's instruction, and the get is batel.

Opinion	*Omer imru*	Sofer as witness
Rif, Rambam (*pashtut*)	Invalid	Kasher
Tosafot	Valid	Pasul
The Ri		Even if *omer imru* is invalid, pasul, taking the chumrot of both sides. Yet he himself rules that if she remarried it is kasher, and if not yet remarried, another get should be written

This explains the Shulchan Aruch's wording: he does not say "pasul", but "*yesh lizaher*", one should be careful. Since he rules like the Rambam in Siman 120 that *omer imru* is invalid, by that logic a sofer signing should be kasher, and the chumra comes from taking on both sides.

A student suggested that from the wording, even if the get has not yet been given, there is no need to write another, since "*yesh lizaher*" is even weaker than a lechatchila-bediavad distinction. "That's a good point." What is clear: if she remarried with it and had a child, the child is absolutely fine, because we hold *omer imru* is invalid.

Don't confuse this with the sofer serving as one of the three dayanim in the Beth Din. "That's a different *she'ela*, much easier," and it can be done.

Two edim and the sofer, three signatures? The Rosh and the Ran hold that one should not have the sofer sign together with two edim, because of the *gezeira*.

When one of the three dies

A final practical point. The husband says to three people: "Write and sign." As learned in Siman 120, this means one writes and two sign. Then one of the three dies, and the husband cannot be reached to instruct again. Is there a way out?

- A student suggested the sofer sign. The Rabbi: no, the husband instructed one to write and two to sign, so that would be going against his instruction.
- **The Beit Shmuel** agrees: signing would be a problem. Rather, **don't sign at all**. Use **edei mesira** alone, which suffice.

- **The Beit Meir**, brought in the Pitchei Teshuva, asks: why is that against the husband's instruction? It is true that when a husband tells **ten** people to sign, all ten must sign, because he deliberately went beyond what is needed. But when he takes three people and says "write and sign," all he means is "sort me out." Had he known that bediavad the get could work with edei mesira, he would not have minded.
- The **Pitchei Teshuva** brings a case: a man going to war told three people to write and sign. He went missing in the war, and before they could act, one of the three died. Despite the Beit Meir, who was lenient against the Beit Shmuel, the authorities in that case **did not want to rely on it**, and she was left an *aguna*.

The class broke for Purim, with the next shiur set for Wednesday 23 March.

Summary of the Halachot

1. **One get for several women** (Seifim 9-10): one date unites it (Rabbi Yochanan), each woman needs her own text (Tur, Beit Shmuel), and it must be given to each before edei mesira. Without them, only the woman holding it is certainly divorced. Resh Lakish's plural formula is kasher (against the Rashba). With separate dates, only the last is certainly divorced; the others are *safek*.
2. **Edim write out their names** (Seif 11): name and father's name (Tur, Shulchan Aruch), even though we rule like Rabbi Elazar. A signature without this takana may still be given (Beit Shmuel).
3. **"Yosef ben Yaakov", "Yosef ed" or "ben Yaakov ed"** suffice; "Yosef" alone is pasul (Seif 12), meaning we cannot rely on it without edei mesira.
4. **Proper signatures give a *chazaka* of edei mesira**; questionable ones require the edei mesira themselves.
5. **A slip in the father's name** is kasher *bish'at hadechak* (Rema); writing a different name is not (Beit Shmuel, Beit Meir). No kinuim, no titles, and anyone with a doubtful name should not sign.
6. **Edim sign in each other's presence** (Seif 13), and both signatures must be verified. A third witness added later: pasul for Rashi, kasher for Rabbeinu Tam.
7. **Languages:** a get in two languages is pasul (Rambam, Shulchan Aruch); signatures in different languages, or a get signed in a different language from its text, are kasher. Edim must understand the get when it is read to them (Beit Shmuel).
8. **One invalid witness** makes the get pasul even with edei mesira: *mezuyaf mitocho* (Seif 17).
9. **The sofer should not sign as a witness** (Seif 18), a chumra stemming from *omer imru*. He may sit as one of the dayanim.
10. **If one of three appointed people dies**, the Beit Shmuel says use edei mesira without signatures; the Beit Meir is lenient, but in practice others did not rely on it.

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